

HOUSE No. 2492

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Marsi

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act require a suitable ride home from the hospital for all cognitively impaired discharges.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>1/13/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/11/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>4/23/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>3/24/2025</i>

HOUSE No. 2492

By Representative Marsi of Dudley, a petition (accompanied by bill, House, No. 2492) of John J. Marsi and Joseph D. McKenna relative to transportation from medical centers for cognitively impaired discharges. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act require a suitable ride home from the hospital for all cognitively impaired discharges.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 111 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting the following new section:-

3 Section 245. Any hospital or medical facility in the Commonwealth shall require that a
4 patient has secured suitable transport from the hospital before discharge, provided that the patient
5 meets the following criteria:

6 (a.) The patient had a surgery that required anesthesia.

7 (b.) The patient qualifies as a person with a developmental disability as defined in 115
8 CMR 2.01 or in 118 CMR 2.02.

9 (c.) The patient is in the hospital for substance abuse treatment.

10 (d.) The patient suffers from Alzheimer's disease or dementia.

- 11 This section shall not be construed to mean that a hospital and medical facility has a legal
- 12 duty to provide or secure transport for patients covered by this section.